

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN PAPUA NEW GUINEA

Complete Community Opposition How-To

This guide uses the terms you'll actually run into in PNG — customary land, the incorporated land group, the environment permit and Level 1/2/3 activities, the environmental impact statement and public review, the development forum, the special agricultural and business lease — and explains each in plain words the first time. PNG's environment law has been amended in ways that affect court challenges, so always check the current text.

INTRODUCTION & FRAMEWORK

The most important thing to know about fighting a project in Papua New Guinea is a fact almost no other community on earth begins with: **you own the land**. Around **97 per cent of PNG — some 47 million hectares — is customary land**, owned under traditional title by clans and landowning groups; less than three per cent has ever been alienated. That reorders everything. In most countries a community must persuade a government not to permit something on land it doesn't own. In PNG, in most cases, **the developer needs something from you**.

And when a foreign company took the land and the rivers anyway, PNG landowners showed what that ownership is worth — even against one of the world's biggest miners. At the **Ok Tedi** copper and gold mine, the Australian giant **BHP** dumped tens of thousands of tonnes of tailings a day into the **Ok Tedi and Fly Rivers**, destroying the fish, forests, and gardens that tens of thousands of people lived on. In 1994, **more than 30,000 landowners sued BHP in the Supreme Court of Victoria, in Melbourne — the company's own home court** — for the destruction of their environment and way of life. In 1996 they forced an out-of-court settlement worth on the order of **half a billion dollars** — compensation, village relocation, a stake handed to the community, and a commitment to contain the tailings. Ordinary river people had dragged a mining giant into court in its own country and won a landmark.

That is the honest PNG picture, and it comes in two halves. The power is real — customary ownership, and the ability to sue a foreign parent abroad, are levers few communities anywhere possess. But so are the limits: the Ok Tedi damage was catastrophic and **continued**; BHP later left the country under a law granting it **legal immunity**, and women and children landowners had to blockade the mine bridge in protest. PNG's state leans heavily on resource revenue, enforcement is weak, and companies work hard to divide landowning groups. So the realistic goal is often to **use your ownership to withhold or condition consent, to win real compensation and protections, and to hold a company to account** — sometimes in a foreign court — as much as to stop a project outright.

The Whole Strategy in One Idea

A big project looks unstoppable, but it's a chain of dependencies, and a chain breaks at its weakest link. A large PNG project needs **your customary land** (so it needs your consent, through your **incorporated land group** and the **development forum**); it needs an **environment permit** from **CEPA**, resting on an

environmental impact statement and public review; and it needs to keep its foreign parent's reputation intact. Every one of those is a link you can grab — and the land link is the strongest. **Find the one closest to your hand and pull.**

Be Honest About Which Fight You're In

Before you spend a year on this, work out your real situation:

- **If it's on your customary land, your consent is the sharpest lever there is** — organise your landowning group, and the developer needs you.
- **If it needs an environment permit, a defective impact statement or a skipped public review is a real ground.**
- **If a foreign parent is behind it, you may be able to sue or pressure it in its home country** — the Ok Tedi lever.
- **If the state is determined and the money is flowing, an outright stop is hard** — aim honestly at withheld or conditioned consent, real compensation and protections, accountability, and delay, and guard against being divided.

Read the whole guide once before you move. Two habits run through it: **use the rights the land and the law give you** — your ownership, the forum, the permit, the courts here and abroad — and **stay united**, because a divided landowning group is how these fights are lost. That's how Ok Tedi's people prevailed.

HOW THE SYSTEM WORKS

To break the chain you have to see it — who decides, how a project moves, and who's watching.

Who Actually Decides

Two things must line up. First, the **land**: on customary land, the developer needs the consent of the **landowners**, organised (for legal dealings) as an **incorporated land group (ILG)**, usually formalised through a **development forum** and a **memorandum of agreement (MOA)** setting benefits and terms. Second, the **environment permit**, issued by **CEPA** (the Conservation and Environment Protection Authority) — with the level of scrutiny set by whether the activity is **Level 1, 2, or 3** (Level 3 being the largest, needing a full **environmental impact statement** and **public review**). The relevant sector ministry issues mining, petroleum, or forestry rights. Know which of these you can grab.

How a Project Moves — and Where You Jump In

The land and the development forum. The developer must secure rights to your customary land, usually via a development forum and an MOA. *Your opening — the strongest of all:* organise your landowning group properly, and negotiate, condition, or withhold consent from a position of ownership.

The environment permit. A Level 3 project needs an **environmental impact statement** and a **public review**. *Your opening:* take part in the review and attack the statement's flaws.

Construction and operation. *Your opening:* breaches of the permit or the MOA, environmental harm — enforceable in the National Court, and against a foreign parent abroad.

Follow the Money and the Permissions

Dig up three things. **Who's behind it and who owns them** — especially any **foreign parent**, because that opens the possibility of suing or pressuring it in its home country, as at Ok Tedi. **What it needs from you** —

your land, your consent, an MOA: your ownership is the leverage. **What it still lacks** — the permit not granted, the forum not held, the financing not closed: whatever's missing is the soft spot.

Who's Supposed to Be Watching

Each is an ally or an arena. **CEPA** issues and enforces the environment permit. The **development forum** is where land terms are set — make sure it's genuine and inclusive. The **National Court** hears constitutional and environmental challenges here. **Foreign courts** — where a parent company is incorporated — can hear claims against it, as Melbourne did over Ok Tedi. The **Ombudsman Commission** examines official conduct, and **Commissions of Inquiry** have exposed abuses (notably the land-grab leases). And PNG's **landowner associations, churches, NGOs, and press** are the forces that reach furthest.

QUICK REFERENCE: SUCCESS RATES

Size up the odds honestly. These are rough patterns, not promises. What most moves them: whether it's on your customary land, whether your group is united, whether a foreign parent is exposed, and how determined the state and the money are.

What you do	Roughly works	How long	Cost	What "works" means
Just gather documents	5–10%	weeks	low	The base for everything else
Organise your ILG and withhold/condition consent	30–55%	months	low	Project blocked, delayed, or conditioned
Take part in the environment public review	15–35%	during review	low	On record; conditions or a redo
National Court challenge (permit/process)	25–50%	1–3 yr	mod	Permit or lease quashed
Sue/pressure the foreign parent abroad	25–50%	1–5 yr	mod (often no-win-no-fee)	Settlement; compensation; containment (Ok Tedi)
Challenge a land-grab lease (SABL)	30–55%	1–3 yr	low–mod	Fraudulent lease cancelled
Landowner mobilisation + press	25–50%	months–yr	low	Pressure; delay; better terms
Everything together (your land, united, parent exposed)	40–65%	1–4 yr	mod	Blocked, conditioned, compensated, delayed
Everything together (state-backed, group divided)	15–40%	1–4 yr	mod	Delayed; better terms; accountability

The levers that move the needle most are **your customary-land consent, suing or pressuring a foreign parent abroad, and challenging a fraudulent lease**, backed by unity and the press. Ok Tedi shows the ceiling (a giant made to pay) and the honest floor (the damage continued and the company left under an immunity). So aim for the full range — withheld or conditioned consent, real compensation and protections, accountability, delay — and above all, stay united.

On cost: organising your landowning group and taking part in the review are cheap; and lawyers have taken foreign-parent cases like Ok Tedi on a no-win-no-fee basis. The great danger isn't cost — it's division, which companies engineer, so protect your group's unity above all.

STEP 1: TARGET IDENTIFICATION

Being against "the project" is weak. Being specific — this consent, this permit flaw, this parent company, this fraudulent lease — is strong. Answer five questions in writing.

1. What is it, and who's behind it? Name the project, the company, and — crucially — its **foreign parent** and financiers.

2. Whose land is it on, and what does it touch? Establish that it's **your customary land** (your strongest lever), and map it over your rivers, gardens, forests, fishing grounds, and sacred sites. **Your ownership, and the water and land you live on, are your sharpest levers** — Ok Tedi destroyed the rivers tens of thousands depended on.

3. What stage is it at, and what's the next deadline? Has a development forum been held? Is an environment permit or public review under way? Has a lease (an SABL) been granted over your land? These openings are time-bound.

4. What does it need from you, and what does it still lack? Your land and consent, an MOA, the permit, the financing. What it needs from you is your leverage; what it lacks is the soft spot.

5. Is your landowning group organised and united — and who else is affected? An organised, united ILG is your foundation; division is your greatest danger. Ok Tedi's power was 30,000 landowners acting together.

What this looks like in real life. A community learns a mine or a plantation is planned on its customary land, backed by a foreign company, with a rushed forum and a thin impact statement. The five questions yield: a company and its foreign parent; your customary land and rivers at stake (your levers); a forum held or a permit pending; a project that needs your consent; and a landowning group you must organise and unite. That's the shape to fight — organise your ILG, condition or withhold consent, and keep the foreign parent in view.

STEP 2: DOCUMENTATION

The difference between a community that can fight and one that can't is proof. Build it in three layers.

Layer one: the paper trail. Get the documents the project rests on — the environmental impact statement and permit, the development forum record and MOA, any lease (SABL) over your land, the company and parent-company records. Then read the impact statement hard for flaws — an understated impact on your rivers and land, an ignored alternative, a public review skipped, a forum that wasn't genuine or inclusive, a lease your group never truly consented to.

Layer two: the ground truth. Dated, located photographs and video of your land, rivers, gardens, and fishing grounds — baseline images before any damage most of all — and the testimony of affected clan members. Ok Tedi was proven by the visible ruin of the rivers.

Layer three: the map of ownership and harm. Lay the project over your customary land, rivers, and sacred sites, and record who your landowning group is and how it decided. Walking into the development forum, CEPA, the National Court — or a foreign court — with your ownership documented, the impact statement, and that map is what makes them take you seriously.

WHAT TO GATHER, AND WHERE TO FIND IT

- **The environmental impact statement and permit, the development forum record and MOA, any SABL lease** — from CEPA, the forum, and the lands department.
- **Your landowning-group records** — your ILG registration and your group's decisions.
- **Ownership and financing** — the company and, above all, the **foreign parent** and its home jurisdiction.
- **The ownership-and-harm map** — your customary land, rivers, gardens, and sacred sites, laid over the project.
- **Dated site evidence and named testimony** — photographs marked with date and place, and clan members' statements.

STEP 3: BUILDING LOCAL OPPOSITION

Documents give you a case; a united landowning group gives you power — and division is how these fights are lost. Build in four moves.

Organise your landowning group properly. Form or confirm your **incorporated land group (ILG)**, so your group can act, decide, and negotiate as one legal owner. This is the foundation of everything in PNG.

Guard unity above all. Companies and brokers deliberately split landowning groups — buying off some, sidelining others, manufacturing "landowner" signatures. Ok Tedi's 30,000 held together; a divided group is a defeated one. Decide collectively, transparently, and inclusively, and expose any attempt to divide you.

Bring in allies and lawyers — here and abroad. Reach PNG's landowner associations, churches, and NGOs, and lawyers who can run a National Court case — and, where a foreign parent is exposed, the international lawyers who take cases like Ok Tedi, often no-win-no-fee. Hold meetings where people see the evidence.

Build to last. PNG fights, and foreign-court cases, run for years. Build clear roles, a secure shared archive, a genuinely inclusive way to decide together, and a plan for the financial and emotional toll — and, if direct action is contemplated, get legal advice first.

STEP 4: LEGAL CHALLENGES, CONSENT & THE FOREIGN PARENT

Law here is unusually powerful because you start as the landowner — and because a foreign parent can be pursued in its own country.

Consent Is Your First and Sharpest Lever

On customary land, the developer needs your consent, set through the **development forum** and the **MOA**. Insist the forum is genuine and inclusive; negotiate hard on protections, compensation, and conditions; and where the harm is unacceptable, **withhold consent**. A well-organised, united landowning group refusing or

conditioning consent is the strongest single lever in this guide.

The Environment Permit and the National Court

A Level 3 project needs an **environmental impact statement** and a **public review** before CEPA issues the **environment permit**. Take part, attack the statement's flaws, and — if the permit is granted on a defective process — challenge it in the **National Court**. (Note that PNG has amended its environment law in ways that have, at times, narrowed the right to bring such challenges, so check the current text and get advice.) Fraudulent **special agricultural and business leases (SABLS)** — used to grab customary land for logging and plantations — have been exposed by a Commission of Inquiry and cancelled; if your land is caught by one, challenge it.

Suing or Pressuring the Foreign Parent Abroad

The Ok Tedi lever: where a **foreign parent company** is behind the project, you may be able to **sue it in its home country** — as 30,000 landowners sued BHP in Melbourne — for the harm caused, or to pressure it there through its investors and reputation. Foreign courts and foreign public opinion can reach a company that the PNG state will not restrain. This is one of PNG communities' most distinctive and powerful tools.

The Honest Limits

Straight talk: your ownership and the foreign-parent route are powerful, but the state leans on resource money, enforcement is weak, companies engineer division, and even Ok Tedi's landmark win did not stop the damage or prevent BHP leaving under an immunity. So use the strong tools — consent, the permit and National Court, the foreign parent — pair them with unity and the press, and count withheld or conditioned consent, real compensation and protections, a cancelled lease, accountability, and delay as wins alongside an outright stop.

TURNING YOUR EVIDENCE INTO ARGUMENTS

A stack of documents wins nothing until you aim it.

Ownership becomes a veto. Not "we don't want the mine" but *"this is our customary land, and as its owners, organised as one group, we do not consent on these terms."*

A parent company becomes a defendant. *"The foreign company behind this destroyed our rivers — and we can pursue it in its own courts, as Ok Tedi's people pursued BHP."*

A fraudulent lease becomes a challenge. *"This lease over our land was granted without our group's true consent — it should be cancelled."*

The harm becomes a story that travels. *"The rivers, gardens, and fish our clans have lived on for generations — destroyed for a mine, by a company we never truly agreed to."*

Match it to the venue: the consent to the development forum; the permit flaws to CEPA and the National Court; the fraudulent lease to the courts and the Commission process; the foreign parent to a foreign court and its investors; the human story to the press here and abroad.

STEP 5: MEDIA STRATEGY

In PNG, publicity — especially international — is a powerful lever, because it reaches the foreign parent's investors and reputation, as the Ok Tedi story did worldwide. Landowner associations, churches, and a lively

press make the media front central.

Lead with land, rivers, and people. Not "the impact statement was deficient" but "the rivers and gardens our clans have lived on for generations, destroyed for a mine we never truly agreed to." Use your strongest material: dated photographs, the map of the project over your land and rivers, clan voices, and any court action banked.

Work several audiences at once — reach the parent. Local and national press build domestic pressure; international media and NGO networks reach the foreign parent's shareholders and its home public, where a company like BHP is most exposed. Make it easy: captioned photos, accurate summaries, a map, strong interviews.

Two hard rules. Accuracy above all — one exaggeration can discredit everything and invite a lawsuit. And protect people and unity — let the whole landowning group shape the story, so no one can claim to speak for you against your interests.

EMAILS & LETTERS

Make them your own; keep them short, exact and calm; keep a copy of everything.

8A — Information request (to CEPA / the developer).

Subject: Request for the environment permit documents — [project].

"We, the landowners of [place], organised as [ILG], request the environmental impact statement, the environment permit, the development forum record and MOA, and any lease over our land for [project]. [Contact.]"

8B — Withholding/conditioning consent (to the developer / forum).

Subject: Consent of the landowners of [place] — [project].

"We, the customary landowners of [place], organised as [ILG], do not consent to [project] on the current terms: [our conditions / objections on land, rivers, compensation, protections]. Any dealing requires our genuine, collective consent. [Contact.]"

8C — Objection in the environment public review.

Subject: Objection — public review of [project].

"We, landowners of [place], object to the environment permit for [project]: [the impact statement understates the harm to our rivers and land; the review was inadequate]. We ask that the permit be refused or conditioned. [Attach evidence.]"

8D — To a lawyer (National Court / foreign parent).

Subject: Possible claims — [project] and [foreign parent].

"Our landowning group faces [project] on our customary land, backed by [foreign parent]. We've gathered [the impact statement, the permit, the MOA, photographs of the harm]. We ask your advice on a National Court challenge and on pursuing the foreign parent in its home country. [Contact and evidence summary.]"

8E — To the foreign parent / its investors.

Subject: Environmental and legal risk in [project], PNG.

"We are the customary landowners affected by [project] at [location], backed by your company. It [destroys our rivers and land / lacks our genuine consent] and faces legal challenge. As at Ok Tedi, this carries real legal and reputational risk. [Contact and evidence summary.]"

8F — Challenging a land-grab lease (to the authorities).

Subject: Objection — lease over the customary land of [place].

"We, the customary landowners of [place], report that [the SABL / lease] over our land was granted without our group's true consent: [specifics]. We ask that it be reviewed and cancelled. [Attach evidence.]"

8G — Letter to the press (here and abroad).

Subject: Landowners of [place] act to protect their land and rivers from [project].

"For generations the clans of [place] have lived from [our rivers / gardens / forests]. Now [project], backed by [foreign parent], threatens them — without our genuine consent. We can provide photographs, documents, a map and interviews. [Contact.]"

8H — Uniting the landowning group.

Subject: We own this land — let's stand as one.

"[Project] threatens our land and rivers. Our strength is that we own the land — and that we act as one, as Ok Tedi's 30,000 did against BHP. Let's organise our group properly, decide together, refuse to be divided, and condition or withhold our consent. Please join us. [Contact.]"

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

If you must move fast and lean, do these six things, in order:

- 1. Establish that it's your customary land, and organise your group as one (ILG).** Your ownership is your strongest lever.
- 2. Withhold or condition your consent at the development forum (8B) — genuinely and collectively.**
- 3. Take part in the environment public review (8C), and request the documents (8A).**
- 4. Photograph everything, with dates and places.** Baseline images before any damage matter most.
- 5. Identify the foreign parent and get a lawyer (8D/8E) —** the Ok Tedi route can reach a company the state won't.
- 6. Unite your group and go public here and abroad (8G/8H) — and refuse to be divided.**

Even lean, those six use your ownership, protect your unity, keep the foreign parent in view, and open the legal fronts.

WHEN THE SYSTEM IS TILTED

PNG's tools are real, but the field can be tilted, and you must plan for it.

When they try to divide your group. This is the central danger — buying off some, faking "landowner" consent. Guard unity above all: decide collectively and transparently, and expose any manufactured consent.

When the state backs the project. The state leans on resource revenue. Don't fold: use your customary-land consent, the foreign-parent route, and the courts, and aim for conditioned consent, real protections, compensation, and accountability.

When enforcement is weak. A permit condition or an MOA is only as good as its enforcement. Document breaches and pursue them — in the National Court, and against the foreign parent abroad.

When land is grabbed by lease. Fraudulent SABLs have taken vast customary land. If yours is caught, challenge the lease — many have been cancelled.

WHEN IT'S ACTUAL CORRUPTION — AND WHO'S CAPTURED

PNG has serious, documented problems with corruption in resource deals and land leases, so this matters.

How to spot it. Permits or leases against the evidence; a development forum engineered to exclude true landowners; manufactured "landowner" consent; benefits to brokers and officials while the community carries the harm.

Who's supposed to guard against it. The **Ombudsman Commission** examines official conduct. **Commissions of Inquiry** have exposed abuses, notably the SABL land grabs. The **National Court** can cancel a tainted lease or permit. And PNG's **press, churches, and NGOs** have exposed captured deals.

How to fight it safely. Document precisely and factually — how the process was bent, who benefits, what your group actually consented to — and keep clear the line between what you can prove and what you suspect. Route serious evidence to the Ombudsman, the courts, and trusted journalists rather than making accusations you can't back. Pair the exposure with the consent fight and the foreign-parent pressure.

INTEGRATION & TIMELINE

Don't run these steps one after another — run them together. The documents build your proof; your ownership aims it; a united group is the muscle; the forum, the permit, and the courts here and abroad press the case; the media raises the cost on the parent. Together they multiply. One at a time, they stall.

Early on (weeks 1–8): organise your ILG and unite your group; establish your customary ownership; withhold or condition consent at the forum; take part in the review; request the records; photograph the baseline; identify the foreign parent and get a lawyer.

In the thick of it (months–years): challenge a defective permit or lease in the National Court; pursue the foreign parent abroad; deepen the coalition; open the media front here and internationally.

The long haul (years): carry the litigation, here and abroad; hold your group's unity and consent line; hold out for withheld or conditioned consent, real compensation and protections, a cancelled lease, accountability, or an outright stop.

FINAL ASSESSMENT

Stopping a destructive project in Papua New Guinea can be done — 30,000 landowners dragged a mining giant into its own home court and won a landmark settlement, and every day PNG communities use the simple, enormous fact that they own the land. Hold both truths. The tools are unusually strong: customary ownership, so the developer needs your consent; the development forum and MOA; the environment permit and public review; the National Court; and the power to pursue a foreign parent in its own country. And the constraints are real: a state dependent on resource money, weak enforcement, companies that engineer division, and even a landmark win — Ok Tedi — that did not stop the damage.

Here's the discipline that wins. Start from your ownership: organise your landowning group as one, and condition or withhold your consent from a position of strength. Take part in the environment review and challenge a defective permit or a fraudulent lease in the National Court. Identify the foreign parent, and pursue it — in its own courts and before its own investors, as Ok Tedi's people pursued BHP. Above all, guard your unity, because division is how these fights are lost. Count withheld or conditioned consent, real compensation and protections, a cancelled lease, accountability, and delay as wins alongside an outright stop. That's what Ok Tedi's landowners did — the land, the unity, and a foreign court together. So can you.